

City Council debates terminating Flock contracts, expanding guardrails



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OCT 14, 2026 | 12:49 AM

Some members of Toledo City Council want to terminate the city's agreements with Flock Group Inc., citing concerns around surveillance and artificial intelligence, but others aren't sold, calling it "political theater."

"Flock and other mass surveillance companies, especially that are privately owned and operated, there are some real questions and I think skepticism that we should all have about what's happening with the data, who owns it, what the privacy rights are around it," Councilman Nick Komives said. "There's some legitimate concerns that need to be addressed."

A resolution, introduced by five council members, would urge Toledo Mayor Wade Kapszukiewicz to terminate and not renew any agreements with Flock Group, Inc. and its affiliates. If approved, the resolution requests the mayor's administration to remove or deactivate Flock equipment and delete data collected by the company.

The resolution is sponsored by Councilmen Komives, Brittany Jones, Theresa Gadus, Mac Driscoll, and Erin Kramer.

Mr. Komives' comments followed the council's agenda review meeting Tuesday, which was packed with residents interested in Flock's future within the city. Mr. Komives acknowledged that his colleagues are "squarely divided" on the issue, which was apparent Tuesday.

"If anything, this is just, dare I say, political theater … it doesn't do anything," Councilman Adam Martinez said of the resolution.

Section 30 of the Toledo Municipal Code prohibits council members from interfering directly or indirectly with the mayor's administration, so the council can request to terminate existing contracts, but they can not require it.

But Mr. Komives said the resolution is "just calling on the mayor to do something."

Toledo City Council unanimously approved an independent audit of the city's use and oversight of the Flock system on Sept. 22. A potential pause of the system while the audit is being conducted was floated among members but never voted on.

Much of the debate has focused on the automatic license plate readers, or ALPRs. The license plate readers photograph passing vehicles and record license plates and other identifying features in a database. Police can search the database and receive real-time alerts when a camera detects a vehicle they are seeking.

However, Mr. Komives said until concerns around Flock are addressed, he thinks the city should end all of its contracts with the company. The city uses other Flock technologies such as exterior camera systems, live view cameras, and a drone.

A spokesman for the Toledo Police Department did not comment on the proposed resolution, but noted TPD has previously highlighted numerous cases where Flock technology was used to assist officers and detectives during criminal investigations.

In a statement, George Kral, the city's safety director and former police chief, said the administration takes the concerns around Flock technology seriously, particularly when it comes to protecting residents' privacy and ensuring the responsible use of information collected by TPD.

Mr. Kral said the administration supports the independent audit and is waiting to see what it reveals, noting that the city has used similar technology for nearly 20 years.

“If the audit identifies misuse or failures in oversight, we will take appropriate action,” he said. “But we need to let the independent review do its job before deciding what comes next. Otherwise, what is the point of conducting an audit? Turning off the system before the findings are in would be like an umpire calling a pitch a strike before the ball is thrown.”

Mr. Martinez echoed similar sentiments, saying it was “premature to stop everything.”

Mr. Komives said there could be penalties from ending the contracts early, saying the city could be on the hook for paying out the rest of the contracts, but did not know what that cost could be.

Mr. Martinez said Tuesday he plans to introduce separate legislation that would establish guardrails around the use of the technology. His proposed legislation has not been brought forth to council yet, but he said it would restrict searchable terms to prohibit searches related to gender-affirming care and reproductive rights. The second part of his proposal would require officers to have a warrant and rationale to search the database after a certain period of time, to avoid an officer randomly searching the database.

“I’m really hoping this is a reasonable middle ground for now,” Mr. Martinez said. “Until the state or federal government steps in to address the privacy rights issue.”

Mr. Martinez said he would not vote in favor of the resolution to terminate the city’s contracts with the company. He said he hopes to present his legislation at the council’s Oct. 20 meeting.

Mr. Komives said he is hoping council members will vote on the resolution to terminate the city’s affiliation with Flock on Oct. 20.

“I’m counting right now on six votes, and I am hopeful that a seventh vote will join us and listen to the public, and do what the public is asking us,” he said.

First Published October 14, 2026, 12:49 a.m.